

THE AMERICAN COVENANT

A Framework for Constitutional Renewal in the 21st Century

Activated through The Bridge Protocol

CONCEPTUAL FRAMEWORK • WORKING DOCUMENT

Part of the maveriq Doctrine — alongside CESA, US-RAPA, and the Western States Coalition

*“It doesn’t matter where you started,
what matters is where you finish and the journey along the way.”*

— mav QBJ

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Preamble

We, the people of the United States, recognizing that our founding document — revolutionary for its time — was written for an agrarian nation of four million people, before global telecommunications, artificial intelligence, nuclear weapons, and the complex challenges of modern governance; and recognizing that our current system has been exploited by those who operate in bad faith against the spirit of democratic self-governance, do hereby set out this framework for a peaceful, lawful, and orderly renewal toward a more perfect union.

This is a conceptual framework — a serious, structured thought experiment in democratic innovation. The Founders themselves were a group of people in conversation, daring to imagine something different. The American Covenant is offered in that same spirit: not as a finished mandate, but as an invitation to a generational conversation about what self-government should look like for a nation of 335 million.

This renewal shall occur: without violence; without interruption of essential services; without suspension of individual rights; without concentration of power in any single individual; with full transparency; with international observation; and with the consent of the governed.

Part I — Foundational Principles

The Non-Negotiables

Throughout every phase of the transition, the following shall remain inviolate. They are the guardrails that distinguish lawful renewal from a power grab:

- No individual right shall be suspended, limited, or modified except through processes that already legally exist.
- No single person shall accumulate additional powers beyond those currently held.
- All government operations necessary for public safety, health, and welfare shall continue uninterrupted.
- The transition process itself shall be subject to judicial review.
- Any citizen may challenge any transition action in court.
- Complete transparency shall govern: all proceedings, documents, and decisions shall be public within 48 hours, unless genuine national security requires a brief, reviewable delay.

Part II — The Seven Pillars of Government

The American Covenant replaces the traditional three branches with seven purpose-built pillars, each designed for a specific function of governance, and each checked by the others.

Pillar 1 — The Rights Guardian

Protects individual and collective rights proactively, not only after harm has occurred. The current system requires a person to be injured, hire a lawyer, file suit, and wait years. The Rights Guardian acts before rights are violated.

- **Rights Guardian Council:** 11 members serving staggered 12-year, non-renewable terms.
- **Regional Rights Defenders:** one in each federal circuit.

- **Binding protective orders:** may halt government actions that violate Tier 1 (Inviolable) rights, with immediate effect.
- May bring cases directly to the Constitutional Tribunal on behalf of individuals, and publishes an annual “State of Rights” report.

Pillar 2 — The Policy Assembly

Debates and decides policy through three chambers, balancing elected representation, ordinary citizens, and long-term stewardship.

Chamber A — The Elected Representatives

- 500 members; two-year terms; maximum of six terms (12 years); elected by Ranked Choice Voting in independently drawn districts.

Chamber B — The Citizens’ Assembly

- 500 members selected by random lottery, stratified to represent the nation’s demographics; two-year terms; well compensated (\$95,000/year plus housing); must approve all major legislation. This chamber represents ordinary people, not career politicians.

Chamber C — The Futures Council

- 50 members serving ten-year terms; reviews all legislation for long-term impact; may delay — but not permanently block — legislation that creates major long-term harm; publishes a 50-Year Impact Assessment for major bills.

Pillar 3 — The Executive Council

There is no single president. Executive authority is held by a Council of Seven, each elected separately by national popular vote using Ranked Choice Voting, each serving four-year terms with a maximum of two terms per position:

- Councilor for Domestic Affairs
- Councilor for Foreign Affairs
- Councilor for Economic Management
- Councilor for Justice & Rights Implementation
- Councilor for Infrastructure & Environment
- Councilor for Health & Human Services
- Councilor for Defense & Security

Decision thresholds: normal operations require a majority of 4 of 7; emergency declarations require a supermajority of 5 of 7. No single person can start a war or declare an emergency. Nuclear-weapons release requires 5 of 7 Councilors — unilateral authority is abolished.

Pillar 4 — The Justice System

Resolves disputes and interprets law through three tracks.

- **Track A — Community Justice:** local, restorative justice for minor matters.
- **Track B — Professional Courts:** complex civil and criminal matters.

- **Track C — The Constitutional Tribunal (replaces the Supreme Court):** 15 justices serving 15-year staggered terms, with one new justice seated each year. Selected five by the Policy Assembly, five by state governors, and five by sortition from qualified scholars. No lifetime appointments. Invalidating legislation requires 9 of 15 — making narrow, partisan 5-4 rulings impossible.

Pillar 5 — The Integrity Branch

Anti-corruption and accountability, structurally independent of every other pillar.

- **Independent Prosecutors Office:** cannot be fired by anyone they might investigate.
- **Financial Transparency Office:** all government spending public in real time.
- **Election Security Commission:** nonpartisan, permanent, and well funded.
- **Ethics Enforcement Office:** binding rules with real penalties — fines up to \$1 million and permanent bar from office.
- **Whistleblower Protection Agency:** a safe harbor for those who expose wrongdoing.

Pillar 6 — The Commons Trust

Manages shared resources for current and future generations. Some things belong to all Americans and to those not yet born:

- Public lands, mineral resources on public lands, the broadcast spectrum, waterways and aquifers, and the government Data Commons.

Structure: the Trust operates with a fiduciary duty to future generations. Revenue flows into a Sovereign Wealth Fund (on the Alaska and Norway model), pays an annual dividend to all citizens, and is kept independent of annual budget politics.

Pillar 7 — The Federation Council

Manages the federal–state–tribal–local relationship.

- Seats representatives from each state, tribal nation, territory, and the District of Columbia; resolves disputes between states; reviews federal actions for state-sovereignty implications; and may block federal legislation that violates reserved state powers by a 2/3 vote. Tribal nations are recognized as equal sovereign partners.

Part III — Electoral Reform

The People’s Vote Matters

The Electoral College is abolished. The Executive Council and the Congress are elected by direct national popular vote using Ranked Choice Voting. Every American’s vote counts equally, regardless of which state they live in.

Ranked Choice Voting

Voters rank candidates in order of preference. If no candidate wins an outright majority, the last-place candidate is eliminated and those ballots transfer to their next choice, repeating until one candidate has a majority. This ends spoiler dynamics and “lesser of two evils” voting, and lets new parties compete fairly.

Access to the Ballot

- Automatic voter registration at age 18 through any government interaction; same-day registration available to anyone missed.
- No purging of voter rolls except for death or relocation, and only with notice; voting rights restored immediately upon release from incarceration; no barriers beyond basic identity verification.
- Election Day is a federal holiday; a minimum of 14 days of early voting; no-excuse vote-by-mail for all citizens; drop boxes in every precinct.

Part IV — The Rights Charter

Rights should expand over time, not contract. The Covenant establishes three tiers.

Tier 1 — Inviolable Rights

These rights may never be limited, suspended, or modified — no exceptions for emergency, war, or any circumstance:

- Life — no death penalty, no extrajudicial killing, no torture.
- Freedom from torture and cruel treatment.
- Freedom of thought, conscience, and belief.
- Equal personhood under law — every human being is a person.
- Access to justice — habeas corpus may never be suspended.
- Freedom from slavery and servitude.
- The principle of legality — no punishment for conduct that was not criminal when done.

Tier 2 — Fundamental Rights

May be limited only during a genuine emergency, using the least restrictive means, with an automatic sunset:

- Speech and expression (including press, academic, and artistic); assembly and association (including unions, parties, and protest); privacy (bodily autonomy, communications, data, and the home); freedom of movement; the right to vote; the right to keep and bear arms (with reasonable regulation); due process; and equal protection.

Tier 3 — Economic and Social Rights (The CESA Model)

Commitments the government must progressively realize — modeled directly on Colorado's Economic Security Act and its Seven Pillars of Life Stability:

- **Health Security** — quality healthcare without financial hardship; no bankruptcy from medical bills.
- **Income Security** — protection from economic disruption, including AI displacement, with ongoing support and retraining.
- **Family Security** — universal life-insurance access and affordable childcare so no family is devastated by a death or a paycheck.
- **Housing Security** — adequate, affordable housing and a housing-first approach to homelessness.

- **Food Security** — freedom from hunger; no child goes to school hungry.
- **Economic Opportunity** — a living wage, safe conditions, the right to organize, and real pathways to advance.
- **Protection from Disruption** — protection from external forces — AI, economic shocks, emergencies — that can destroy stability without warning.

The federal government sets minimum national standards based on the CESA model, supports state programs, ensures access does not depend on which state a person lives in, and builds these systems through the enterprise-fund model so they survive political change.

Part V — Innovative Provisions

Liquid Democracy

- Citizens may vote directly on any legislation (a 3% petition triggers an advisory vote) or delegate their voting power to a trusted person, revocable at any time. Direct citizen initiatives: a 5% petition places a measure on the ballot; 55% approval makes it law.

Quadratic Voting for Major Decisions

- For constitutional amendments and long-term decisions, each citizen receives 100 voice-credits per year. Cost is quadratic — one vote costs 1 credit, two votes cost 4, three cost 9 — allowing people to express intensity of preference while preventing single-issue capture of democracy.

National Service

- Every citizen enters a lottery at age 18; 25% are selected each year to serve one year — in a military, conservation, healthcare, education, or disaster-response corps. Benefits include two years of tuition or its equivalent and lifetime public-employment preference. The aim is shared national experience across class, race, and geography.

Sunset Provisions

- Every law expires after 20 years unless renewed; every regulation after 10. A Constitutional Review Convention convenes every 25 years, so each generation actively chooses its government.

Wealth Transparency

- Annual public disclosure for individuals with wealth over \$100 million; quarterly disclosure over \$1 billion. A wealth tax is explicitly authorized, foreclosing constitutional challenge.

AI Governance

- An AI Oversight Commission within the Futures Council. No AI may be granted legal personhood. Humans must remain in control of critical decisions — weapons, justice, and healthcare. Algorithmic transparency is required for government use, and AI productivity gains are shared broadly through policy.

The Right to Disconnect

- Employers may not require a response during off-hours (10 hours of daily rest, one day weekly, two weeks yearly). Government may not require immediate response except in a genuine emergency. Manipulative “dark patterns” in technology are prohibited.

Data as Property

- Your personal data is your property. Explicit, revocable consent is required for its collection, with a right to deletion. Companies that profit from your data must compensate you, and data portability is required — no lock-in.

The “Break Glass” Provision

If any of the following occurs, automatic safeguards activate without requiring any individual to decide: an official refuses to leave office after their term; election results are rejected without judicial basis; the military is deployed against civilians without authorization; journalists, opposition, or protesters are arrested en masse; or courts are closed or judges removed en masse.

Self-executing safeguards: all military and law enforcement stand down; state governments assume primary authority; essential functions continue under career staff; an Emergency Elections Commission calls new elections within 90 days; and anyone asserting unconstitutional authority immediately loses all legal immunity.

Part VI — International Oversight

A fundamental change in the governance of the world’s largest economy and most powerful military affects every nation. International observation serves three purposes: legitimacy (demonstrating genuine democratic reform, not a coup), stability (assuring allies and adversaries that treaties and obligations remain in force), and accountability (external verification that the transition follows its own rules).

Composition — Three Observer Nations

Selection criteria: an established democracy (at least 30 years of continuous democratic governance), not a current military adversary of the United States, a demonstrated commitment to human rights, no active territorial or major trade disputes with the United States, and geographic and cultural diversity.

- **Australia** — Pacific ally with a Westminster parliamentary tradition, compulsory voting, and deep experience with constitutional referendums and preferential voting.
- **Germany** — post-war constitutional expertise; a Basic Law built to resist authoritarian capture; strength in federal systems and constitutional courts.
- **New Zealand** — a common-law system with successful electoral reform (mixed-member proportional) and streamlined, unicameral governance.

Powers and Limitations

The Council MAY: observe all proceedings; access all non-classified transition documents; interview any official or citizen who consents; issue public reports at any time; brief the United Nations and international media; and advise on best practices from their own constitutional experience.

The Council MAY NOT: vote on any decision; veto any action; modify any provision of the new framework; direct any U.S. official; access classified national-security information; or interfere in any domestic political campaign or debate.

Part VII — The Bridge Protocol

The Activation Sequence

The Bridge Protocol is the lawful, transparent, people-approved process that carries the nation from the current system to the American Covenant. It runs for ten years (120 months), and every stage has a GO/NO-GO gate — if a threshold is not met, the process pauses or ends, to be taken up again later. At no point is any right suspended or any office empowered beyond its current authority.

Phase 0 • Months 1–6 — The Call

Congress passes the Constitutional Revision Deliberation Act by a 2/3 vote. State legislatures debate calling a Constitutional Convention.

GO / NO-GO: *34 states must agree to proceed. If fewer than 34, the process ends — to be tried again later.*

Phase 1 • Months 7–24 — The Convention

Each state sends five delegates — two chosen by the legislature, two elected, and one by lottery. The Convention drafts the new framework with full public input, observed by the International Oversight Council.

GO / NO-GO: *2/3 of delegates must approve the draft.*

Phase 2 • Months 25–42 — Ratification

Each state holds a ratification convention — not merely a legislative vote — alongside a national referendum.

GO / NO-GO: *38 states must ratify AND a national referendum must reach 55% approval. Both thresholds are required.*

Phase 3 • Months 43–66 — Parallel Construction

New institutions begin forming but hold zero authority. Elections are held for new positions and the Citizens' Assembly is selected by lottery. The new institutions run in “shadow mode” to test the systems while the existing government continues to operate.

GO / NO-GO: *Systems must demonstrate they function before any authority transfers.*

Phase 4 • Months 67–78 — The Handoff

Authority transfers in stages — administrative first, then domestic, then security. Old institutions wind down naturally as terms end, on a clear legal timeline, concluding with a formal ceremony.

GO / NO-GO: *Each transfer proceeds only when its predecessor function is confirmed stable.*

Phase 5 • Months 79–120 — Stabilization

Close monitoring for problems, with an emergency amendment process available if needed. The International Oversight Council completes its final assessment.

GO / NO-GO: *The transition is officially complete at the end of Year 10.*

At a Glance — Current System vs. The American Covenant

Feature	Current System	The American Covenant
Presidential election	Electoral College	National popular vote (RCV)
Executive power	Single President	Council of Seven (4 of 7)
Supreme Court	9 justices, lifetime terms	15 justices, 15-year terms
Citizen voice	Vote every 2–4 years	Citizens' Assembly + initiatives
Accountability	DOJ controlled by President	Independent Integrity Branch
Economic rights	None guaranteed	CESA-style 7 pillars
Nuclear authority	President alone	5 of 7 Councilors
Long-term thinking	No mechanism	Futures Council + Commons Trust

A Closing Note

The American Covenant is a destination, not a demand. CESA proves the economic model works at the state level. US-RAPA protects the democratic process at the federal level. The Western States Coalition builds regional capacity. The American Covenant is what those efforts make possible — the long game, built to last generations.

This document is a conceptual framework and a working draft, offered to start a conversation rather than to end one. It is meant to be read, challenged, improved, and argued over — by citizens, scholars, and neighbors alike. The question was never whether our institutions must adapt to a nation of 335 million living with AI, nuclear weapons, and instant global communication. The question is who leads that adaptation, and whether we do it on purpose, in the open, and by consent.

“Speak softly, but carry a big stick.”
— mav QBJ

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